



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 9683
(FIFTH REVISION)

APR 15 2002

EXPIRATION DATE: March 31, 2004

(FOR RENEWAL, SEE 49 § 107.109)

1. GRANTEE: Meter Engineers, Inc.
Wichita, Kansas
2. PURPOSE AND LIMITATIONS:
 - a. This exemption authorizes the manufacture, mark and sale of non-DOT specification containers described as mechanical displacement meter provers for use in the transportation of commerce of certain Division 2.2 and Division 3 materials. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.242 and 173.243 in that non-DOT specification containers are not authorized except as specified herein.
5. BASIS: This exemption is based on the application of Meter Engineers, Incorporated dated March 19, 2002, submitted in accordance with § 107.109
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Material Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Flammable liquid, n.o.s.	3	UN1993	I
Liquefied gas, flammable, n.o.s.	2.1	UN3161	N/A

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7. SAFETY CONTROL MEASURES:

a. Packagings prescribed are non-DOT specification containers described as mechanical displacement meter provers mounted on a truck chassis or trailer. The meter provers have nominal water capacities between 50 and 650 gallons and are designed to ANSI Standards B 31.3, B 31.4, or B 31.8. The pressure vessels are made up of seamless ASTM SA 53, 6 inch through 16 inch nominal pipe size (NBS), schedule 40, grade B or equivalent. Pipe assembly is by 150 lb., 300 lb., or 600 lb. ASA welded flange joints. The maximum service pressure is 275 psig for assemblies with 150 lb. ASA flanges, 720 psig for assemblies with 300 lb. ASA flanges, and 1440 psig for assemblies with 600 lb. ASA flanges. Pressure relief devices are not required. The motor vehicle also contains a 42 gallon sump tank. The sump tank is equivalent to DOT Specification steel drums authorized for flammable liquids. The provers must be as shown on Meter Engineers, Inc. drawings numbers 86-20 dated October 25, 1985 and 86-21 dated September 3, 1985 on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). In addition:

(1) The bumper for the truck or trailer must meet the requirements of § 178.340-8(b) in effect in 1990 and § 393.86.

(2) During transportation, the pressure in the prover must not exceed 25 percent of the maximum service pressure.

(3) Effective July 1, 2002, the pressure rating as determined from the pipe component with the lowest pressure rating must be marked on each truck or trailer.

(4) No new construction is authorized.

b. TESTING -

(1) Each prover must be visually inspected once a year and retested at least once every 5 years at not less than 75 percent of the prover's design pressure in accordance with § 173.32(e). Only meter provers requalified after May 31, 2000 are required to be in conformance with § 173.32(e).

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(2) The sump tank must be visually reinspected once a year and pressure retested at least once every five years at a minimum pressure of 15 psig.

- c. OPERATIONAL CONTROLS - Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire, or accident.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modifications or changes are made to the package and it is offered for transportation in conformance with this exemption and the HMR.

c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this exemption must be either marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.

e. A current copy of this exemption must be maintained at each facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

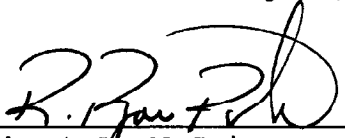
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued in Washington, D.C.



Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln